

Tentative Rulings for August 26, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2501205	OWIESY vs AMERICA WEST PROPERTIES, INC.	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.) A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Movants' evidentiary objections

The Court **OVERRULES**: 3, 4, 5, 6, 13, and 14 as meritless.

The Court **SUSTAINS**: 1 (legal conclusion), 2 (hearsay), 7 (failure to cite), 8 (misstates evidence), 9 (legal conclusion), 10 (lacks foundation), 11 (relevance), 12 (relevance), and 15 (argumentative).

Improper Separate Statement Format

"An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the

evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers.” (Cal. Rules of Court, rule 3.1350(f)(2); see also *Hodjat v. State Farm* (2012) 211 Cal.App.4th 1, 8.) Here, although Plaintiff disputes Defendants’ Undisputed Facts (“UF”) #7, 8, 9, 11, and 18, Plaintiff does not list the supporting evidence to dispute. Thus, these UF are truly not disputed.

Plaintiff disputes UF #11, which states, “On or about March 6, 2023, Plaintiff alleges to have slipped and fallen on water in the office space he leased per the Lease.” However, this is not a true dispute because Plaintiff responds, “On or about March 6, 2023, Plaintiff slipped and fell while in his office unit at Defendants’ property located at 802 Magnolia Ave., Suite 106, Corona, California 92879.” This is not truly a dispute because Plaintiff does not dispute UF #1, which provides the foregoing address as the office unit Plaintiff leased.

“The opposing party’s responses to the separate statement must be in good faith, responsive and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists.” (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876-876, emphasis added.) “Courts should...not hesitate to disregard attempts to game the system by the opposing party claiming facts are ‘disputed’ when the uncontroverted evidence clearly shows otherwise.” (*Id.* at 876.)

Plaintiff asserts an objection to UF #18 and 20. California Rules of Court, rule 3.1354(b) provides, in part, that “[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement.” Plaintiff’s objection also does not reference the Evidence Code next to the ground for objection. (See Cal. Rules of Court, rule 3.1354(b).) The Court disregards Plaintiff’s objection.

Accordingly, analysis on the merits was done by reliance on the evidence in support of the UF to determine if there truly is a factual dispute.

Plaintiff’s Complaint contains two causes of action that are premised upon the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant’s legal duty of care toward plaintiff, (2) defendant’s breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.)

Duty / Release / Waiver

A release is the relinquishment, concession, or giving up of a right, claim, or privilege by the person in whom it exists or to whom it accrues to the person against whom it might have been demanded or enforced. (*Commercial Ins. Co. of Newark, N.J. v. Copeland* (1967) 248 Cal.App.2d 561, 565 (“*Copeland*”).) A release may negate the duty element of a negligence action. (*Benedek v. PLC Santa Monica* (2004) 104 Cal.App.4th 1351, 1356.) A waiver is the intentional relinquishment of a known right after knowledge of the facts. (*Copeland, supra*, 248 Cal.App.2d at 565.) The legal effect of a release is also the relinquishment of rights such that it is a waiver. (*Ibid.*) In summary judgment, the defendant bears the burden of establishing the validity of a release. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.)

It is undisputed that on March 7, 2011, Plaintiff signed a Standard Multi-Tenant Office Lease – Modified Gross” (the “Lease”) for the Premises as a Lessee with the former property owner, RCP. (UF #1, 3.) Plaintiff was notified that RCP later sold the building to Guochang, who assumed all rights and responsibilities as Lessor under the Lease. (UF #3-4.) On or about July 31, 2017, Guochang entered into a “Property Management Agreement” with AWP. (UF #10.) Plaintiff paid rent pursuant to the Lease terms. (UF #6.) It is undisputed that on March 6, 2023, Plaintiff alleges to have slipped and fell on water in the office space he leased. (UF #11.)

The Release provides, in relevant part:

8.8 Exemption of Lessor and its Agents from Liability. Notwithstanding the negligence or breach of this Lease by Lessor or its agents, neither Lessor nor its agents shall be liable under any circumstances for: (i) injury or damage to the person or goods, wares, merchandise or other property of Lessee, Lessee’s employees, contractors, invitees, customers, or any other person in or about the Premises, whether such damage or injury is caused by or results from fire, steam, electricity, gas, water or rain, indoor air quality, the presence of mold or from the breakage, leakage, obstruction or other

defects of pipes, fire sprinklers, wires, appliances, plumbing, HVAC or lighting fixtures, or from any other cause, whether the said injury or damage results from conditions arising upon the Premises or upon other portions of the Building, or from other sources or places, (ii) any damages arising from any act or neglect of any other tenant of Lessor or from the failure of Lessor or its agents to enforce the provisions of any other lease in the Project, or (iii) injury to Lessee's business or for any loss of income or profit therefrom. Instead, it is intended that Lessee's sole recourse in the event of such damage or injury be to file a claim on the insurance policy(ies) that lessee is required to maintain pursuant to the provisions of paragraph 8.

(Defendant Appendix of Evidence ("DAOE"), Albright Decl., Exh. A, "Lease", ¶8.8, emphasis included.) Under the Lease that was in force and effect on the day of Plaintiff's injury, Plaintiff is considered the Lessee, Gouchang is the Lessor, and AWP is considered the agent of the Lessor. (UF #15-18.)

Clear and Unambiguous

Contract principles apply when interpreting a release and determination of such is a legal question. (*Ibid.*) To be effective, such a release must be clear, unambiguous, and explicit. (*Id.*) Like any agreement, a waiver or release agreement is subject to ordinary contract defenses. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 562-564 [triable issue existed on fraud defense because defendant aware that customer who signed English-language release did not understand English].) So long as the express agreement to assume a risk does not violate public policy, it will be upheld and will constitute a complete bar to a negligence cause of action. (*Madison v. Superior Court* (1988) 203 Cal.App.3d 589.) "When parties intend for an express assumption of risk provision to exceed the inherent risk of the endeavor for which the release is signed, it is especially important for parties to clearly, explicitly and comprehensibly state the inclusion of noninherent risks." (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1289.)

Plaintiff argues the Release is unclear and ambiguous because the clause was placed in the middle of the document and in size 8 font size, the same font size used throughout the lease. Plaintiff cites *Leon v. Family Fitness Center (No. 107), Inc.* (1998) 61 Cal.App.4th 1227, 1234 ["An express release is not enforceable if it is not easily readable...not distinguished from other sections, if printed in the same typeface as the remainder of the document, and if not likely to attract attention because it is placed in the middle of a document."].) However, while "print size is an important factor, it is not the only one to be considered in assessing the adequacy of a document as a release. (*Id.*) The *Leon* court found the release clause in dispute inadequate because it was not prefaced by a heading to alert the reader it is an exculpatory release, contained no bold lettering, is in the same smaller font size as most of the document, and contained no clear and explicit language expressing intent of release. (*Id.* at 1233.) In contrast, the Release here is prefaced by a bolded heading to put the reader on notice of release, i.e. Exemption of Lessor and its Agents from Liability. (Agreement, ¶8.8.) Accordingly, there

is language to alert a reader of a release that is clear and explicit in expressing intent of release. (*Leon, supra*, 61 Cal.App.4th at 1233, citing *Ferrell v. Southern Nevada Off-Road Enthusiasts, Ltd.* (1983) 147 Cal.App.3d 309, 317.) Thus, Plaintiff's argument is unavailing.

Plaintiff contends the Release is not enforceable because pipes bursting in the ceiling and gushing water into Plaintiff's adjoining unit, the injury-producing act, is too remote from the object and purpose for which Plaintiff signed the release. Plaintiff asserts the object and purpose of the release was to allow Plaintiff quiet enjoyment of the unit. While Plaintiff acknowledges the release specifically mentions plumbing, according to Plaintiff, this is still too vague and ambiguous a term. However, Plaintiff presents no evidence to support this argument. Plaintiff cites to *Leon, supra*, 61 Cal.App.4th at 1234. However, the release in *Leon* involved an assumption of risk in a retail installment contract for a sport or physical exercise, distinguishable from the agreement here.

Here, the Release explicitly states "neither Lessor nor its agents shall be liable under any circumstances for: (i) injury or damage to the person or goods, wares, merchandise or other property of Lessee...whether such damage or injury is caused by...water...from the breakage...or other defects of pipes... from conditions arising upon the Premises or upon other portions of the Building..." (Lease, ¶8.8.) This language is unambiguous and directly encompasses the injury Plaintiff alleges. Plaintiff's incident triggers the application of the Release clause.

Unconscionability

Plaintiff argues the Lease is unconscionable because it is overly harsh and one-sided in Movants' favor, with no benefits to Plaintiff or separate consideration in bargained for exchange of Plaintiff's right to redress. Plaintiff contends the Lease completely absolves Defendants of liability in negligence arising under any circumstance. Plaintiff asserts the release is procedurally unconscionable because it was hidden in the middle of the lease and was presented in a take it or leave it non-negotiable term of the lease. Defendants disagree, arguing unconscionability applies differently to commercial leases between sophisticated parties than to consumer contracts. Defendants present a persuasive argument.

"Unconscionable arbitration agreements are not enforceable." (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) "To be voided on this ground, the agreement must be both procedurally and substantively unconscionable." (*Ibid.*) "But they need not be present to the same degree." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (Armendariz).) Rather, the court invokes a "sliding scale" to determine unconscionability: "The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*) "The burden of proving unconscionability rests upon the party asserting it." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing of oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1246.)

The existence of a take it or leave it adhesive contract does not, as a matter of law, render it unenforceable: substantive unconscionability must still be found. (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.) However, Plaintiff's argument that he had no opportunity to negotiate is not supported by the evidence where it is Plaintiff's burden to prove unconscionability. Plaintiff failed to submit any evidence to establish this fact, i.e. no declaration attesting to such. Therefore, Plaintiff's contentions are unsupported.

Plaintiff also argues the Agreement is unenforceable on grounds of substantive unconscionability because the Lease completely absolves Defendants of liability in negligence arising under any circumstance.

"Substantive unconscionability addresses the fairness of the terms in dispute." (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1248.) Because Plaintiff failed to present evidence that he had no opportunity to negotiate the terms of the contract, one who assents to a contract is bound by its provisions. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 710.)

Gross Negligence

A release cannot exculpate a party from gross negligence, i.e., failure to adhere to even a minimal standard of care. Public policy precludes agreements that shelter a party from its own aggravated misconduct; thus a release exculpating a party from negligence liability does not extend to gross negligence. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 776-777 ("*Santa Barbara*"); *Jimenez, supra*, 237 Cal.App.4th at 554-555.) Gross negligence is defined in California as either a "want of even scant care" or "an extreme departure from the ordinary standard of conduct." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186.) Gross negligence "connotes such a lack of care as may be presumed to indicate a passive and indifferent attitude toward results." (*Eriksson v. Nunnink* (2011) 191 Cal.App.4th 826, 857, quoting *Calvillo-Silva v. Home Grocery* (1998) 19 Cal.4th 714, 729.) Failure to follow an industry's standard safety practices can constitute gross negligence. (*Jimenez, supra*, 237 Cal.App.4th at 557.)

Generally, whether an act constitutes gross negligence is an issue of fact; however, summary judgment may be granted where the complaint alleges no facts showing an extreme departure from the ordinary standard of care. (*Santa Barbara, supra*, 41 Cal.4th at 767.) To plead gross negligence, the plaintiff must plead the traditional elements of negligence, duty, breach, causation and damages, as well as extreme conduct on the part of the defendant. (*Rosencrans, supra*, 192 Cal.App.4th at 1082.)

Here, Plaintiff contends Defendants' conduct constituted gross negligence, which would preclude Defendants' reliance on the Release to absolve it from liability. In reply, Defendants argue Plaintiff cannot raise gross negligence for the first time in opposition papers. Defendants point out the Complaint alleges only general negligence and premises liability based on alleged failures to maintain, repair, inspect, and warn but contains no allegation of gross negligence or willful misconduct. Defendants contend Plaintiff is bound by the allegations in the Complaint and that it is improper to expand the scope of liability through an opposition brief.

In a motion for summary judgment, the complaint limits the issues. A plaintiff opposing such a motion cannot defeat it by proffering new, unpleaded theories or issues. (*Laabs v. City of Victorville* (2008) 163 Cal.App.5th 1242, 1247; *Zimmerman, Rosenfield, Gersh & Leeds LLP v. Larson* (2005) 131 Cal.App.4th 1466, 1489.)

The Complaint here alleges, "Defendants' careless, negligent, reckless, and unlawful conduct in regards to maintaining, operating, patrolling, servicing, facilitating, inspecting, and/or controlling the Premises was the legal, direct, and proximate cause of Plaintiff's injuries... Defendants created this dangerous condition and/or failed to take remedial action to remove said dangerous condition..." (Compl., pg. 5.) Accordingly, while the Complaint pleads the traditional elements of negligence, it fails to plead allegations constituting extreme conduct to allow Plaintiff to argue gross negligence. (*Rosencrans, supra*, 192 Cal.App.4th at 1082; *Santa Barbara, supra*, 41 Cal.4th at 767.) Thus, evidence and argument regarding extreme conduct are irrelevant to the present motion because that claim is outside the scope of the pleadings. (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.)

Thus, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

Continuance / Code of Civil Procedure section 437c, subdivision (h)

Plaintiff's opposition filed on August 17, 2026 is duplicative of the opposition filed in June in that Plaintiff again relies on Code of Civil Procedure section 437c, subdivision (h), which provides:

If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication or both that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made ex parte motion at any time on or before the date the opposition response to the motion is due.

(Code Civ. Proc., § 437c, subd. (h).)

Continuance of a summary judgment hearing is not mandatory when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h). (*Park v. First American Title Co.* (2011) 201 Cal.App.4th 1418, 1428.) Plaintiff requests a continuance to permit review of Defendants' May 11, 2026 discovery responses and documents produced therewith. (Young Decl., ¶3.) Young testified that Defendants' responses confirm evidence to prepare Plaintiff's opposition to MSJ is relevant, that it exists, and is within the knowledge and possession of Movants' PMQ. (*Ibid.*) Plaintiff claims undue prejudice without such evidence. (*Ibid.*) Young asserts there was no undue delay by Plaintiff in seeking to obtain the evidence given Young only recently joined the firm and assumed responsibility for this case after prior counsel departed the firm. (*Id.* at ¶4.)

However, the Court granted a continuance based on Plaintiff's request under section 437c, subdivision (h), in June. Plaintiff failed to present evidence addressing Defendants' May 11, 2026 discovery. Plaintiff failed to present a triable issue of material fact.

The motion for summary judgment is granted. A hearing re: proposed judgment is set for September 14, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than August 31, 2026. The proposed judgment must include dispositions as to ALL parties. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505990	SANCHEZ vs STARBUCKS CORPORATION	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole and (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512,

515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Here, there is no dispute Plaintiff is 84 years old. The court must also find that Plaintiff has a substantial interest in the action and his health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP §36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action. The salient question is whether Plaintiff’s health makes preference “necessary to prevent prejudicing his interest in the litigation.” (*Id.*) Pursuant to CCP § 36.5 “[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney or the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of the party.” Importantly, the *Fox* Court noted that the standard under CCP “subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor’s declaration.” (*Fox, supra.*)

Plaintiff offers the declaration of his counsel, attorney Randi L. Thompson. Attorney Thompson provides Sanchez’s medical records (Exhibits B & C) from the Emergency Department at Menifee Global Medical Center on October 26, 2023. (Thompson Decl. ¶¶ 4-5.) The medical records note Plaintiff’s medical history, which includes: “Atrial fibrillation (not on anticoagulation)” and “stroke 1.5 months ago.” (Thompson Decl. Ex C.) Attorney Thompson states Plaintiff “has several chronic and life-threatening medical conditions that, taken together with his injuries and age, are sufficiently severe that preference is necessary to prevent prejudicing his interest in the litigation.” (Thompson Decl. ¶7.)

Thompson’s declaration lacks detailed information about Plaintiff’s current physical status and, most importantly, Plaintiff’s prognosis. Thompson’s declaration does not include any information about Plaintiff’s prognosis, how Plaintiff fares in day-to-day activities, whether Plaintiff has mental capacity and acuity to understand the proceedings, Plaintiff’s mobility, conversations counsel has had with Plaintiff’s doctors or caretakers, etc. The medical records provided indicate Plaintiff has pre-existing medical conditions, including suffering a stroke 1.5 months before the incident giving rise to this litigation. However, there is no evidence that Plaintiff currently suffers from symptoms or complications relating to atrial fibrillation or stroke. Thompson’s declaration does not include any information about Plaintiff’s current medical and physical status and whether Plaintiff currently suffers from complications arising from these conditions. Without additional information about Plaintiff’s prognosis or current physical condition, the court cannot determine that Plaintiff will suffer prejudice without trial preference. **The motion is denied.**

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

The hearing on the demurrer is continued to September 21, 2026, at 8:30 a.m.. Defendant is ordered ***to meet and confer by telephone, videoconference or in person*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the *Complaint*. Plaintiff shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the pleading may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 10 days before the continued hearing date set forth above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the court a declaration stating that the parties have agreed that Plaintiff will file a *first amended complaint* before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve. (CCP §430.41(a)(3).)

Moving party is ordered to give notice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600973	CISNEROS vs HALLWAY HEALTHCARE, INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Upon the motion of a party to an agreement to arbitrate, the court must grant it unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The evidentiary objections are overruled.

Defendant contends that the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 1 *et. seq.* applies. The FAA generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the Agreement itself contains an express factual finding that “the parties agree that Hallway Healthcare is engaged in transactions involving interstate commerce,” and that “this is an agreement to arbitrate under the Federal Arbitration Act (FAA) and that enforceability of this Agreement will be decided in accordance with the FAA” thereby bringing the Agreement squarely within the scope of the FAA. (Ex. A, p. 5.) Plaintiff does not oppose the application of the FAA. Thus, the FAA governs in this case.

Existence of Arbitration Agreement

Defendant contends that the Mutual Arbitration Agreement satisfies all elements of a valid, enforceable contract under California law. First, the Agreement is in writing. Second, Plaintiff Nitzia Cisneros received the Agreement on December 6, 2024, with express notice via the Offer Letter directing her to “carefully review” it before signing. Third, Plaintiff manifested her assent by affixing her electronic signature to the Agreement on December 6, 2024, at 2:06:49 PM EST, nine days before her employment commenced. Her electronic signature is legally binding under the California Uniform Electronic Transactions Act (Cal. Civ. Code § 1633.7), which provides that an electronic signature has the same legal effect as a handwritten signature. Fourth, the Agreement’s terms are sufficiently definite to be enforceable.

In Opposition, Plaintiff contends Defendant failed to prove she personally signed the Agreement because it did not provide a full audit trail, IP address, device identifier, password records, email-delivery records, SMS authentication, or vendor declaration. California law imposes no such rigid requirements for electronic signatures. Civil Code 1633.9(a) provides that an electronic signature is attributable to a person if it was the act of the person, and the act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable. An electronic signature has the same legal effect as a handwritten signature. (Civ. Code § 1633.9.) California courts uphold electronic signatures where the employer shows the employee accessed a secure platform, reviewed the agreement, and signed. In *Espejo* the court held that authentication was sufficient where the employer provided detailed evidence of unique username/password security precautions, the steps required to sign, and metadata including date, time, and IP address. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 104 (2016).) By contrast, in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal. App. 4th 836 the court held that an employee's name and timestamp on an electronic arbitration agreement were insufficient where the employer failed to explain how the electronic signature was placed on the agreement or how it was attributable to the employee.

Here, Defendant has provided evidence exceeding the deficient showing in *Ruiz*. Tiffany Hall, Hallway Healthcare's Chief Executive Officer, declares Plaintiff received the Offer Letter and Agreement via the Company's electronic onboarding platform on December 6, 2024, nine days before her employment start date. The Offer Letter expressly directed Plaintiff to "carefully review" the enclosed Mutual Arbitration Agreement and required Plaintiff to "sign and date this letter in the space provided below and return it and the enclosed Mutual Arbitration Agreement." On December 6, 2024, at 2:06:49 PM EST, Plaintiff electronically signed and accepted both the Offer Letter and the Mutual Arbitration Agreement. The electronic signature was captured and verified by the Company's onboarding platform under Plaintiff's registered login account, nitziacisneros296@gmail.com. The electronic signature verification page reflects: (1) Offer Status: "Offer Accepted"; (2) Signer Name/Initials: "Nitizia Cisneros"; (3) Login ID: nitziacisneros296@gmail.com; and (4) Date Electronically Signed: December 6, 2024, at 2:06:49 PM EST. The Agreement itself identifies the employee by her full legal name- "Nitizia Cisneros"-on the face of the Agreement. Hall further declares that the documents are kept in the ordinary course of Hallway Healthcare's business. Defendant established Plaintiff received notice, accessed the secure onboarding platform through her registered credentials, reviewed the Agreement, and signed it on a date certain. Importantly, Plaintiff does not deny using ADP, identify forgery, or claim anyone used her credentials; she simply says she does not recall and does not believe she signed.

Plaintiff's lack of memory

Plaintiff claims a lack of memory regarding signing the Agreement, but a plaintiff cannot defeat competent electronic-signature evidence merely by saying she cannot confirm a computer printout or does not remember signing. (*Jyere v. Wise Auto Group* (2023) 87

Cal. App. 5th 747.) Plaintiff's own declaration confirms she completed ADP onboarding remotely from home, used her personal device, and saw the word "arbitration" in the onboarding documents. She does not claim she was locked out, that the platform malfunctioned, or that anyone else used her credentials. Her lack of recollection is not evidence of fraud, forgery, or nonacceptance.

Plaintiff's claim that Defendant has access to her credentials

Plaintiff contends Defendant's HR personnel "provided" or "had access to" her credentials, but this is speculative. Plaintiff does not declare HR told her they had her password, logged into her account, signed for her, or accessed ADP on December 6, 2024. She states only her subjective "understanding" that certain people were involved with credentials. However, such a conclusory statement creates no factual dispute. As noted by Defendant, employers commonly provide initial login credentials. This does not show HR retained access, used Plaintiff's account, or signed for her. Plaintiff offers no evidence that anyone but she accessed the account, reviewed the Agreement, or signed it. Even Plaintiff herself does not make an affirmative claim that anyone else signed for her.

Plaintiff's authority does not support her argument

Plaintiff relies on *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal. App. 4th 836, where the employer offered only a name and timestamp with no explanation tying the signature to the employee. In the present matter, Defendant's CEO, Ms. Hall, explains the onboarding process, the registered login account, the signing event, and the Company's business records; the Offer Letter and verification page independently corroborate the signature.

Plaintiff also relies on *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, where the employer failed to show unique private credentials and the evidence showed others had access to information needed for portal access. Here, Plaintiff alleges only a vague "understanding" that HR was involved with credentials, with no evidence and without affirmatively claiming that anyone accessed her account or signed for her.

Procedural Unconscionability

Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power. (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal. App. 4th 74, 83.) Oppression arises from an inequality of bargaining power, when one party has no real power to negotiate or a meaningful choice. (*Id.* at 84.) Surprise is the extent to which the provision is hidden in a prolix form. (*Haydon v. Elegance at Dublin* (2023) 97 Cal. App. 21 5th 1280.)

Plaintiff received the Agreement on December 6, 23 2024, nine days before work began, and had ample time to review it, consult counsel, or ask questions. The Offer Letter prominently directed her to "carefully review" the Mutual Arbitration Agreement.

The Agreement is clearly labeled, plainly written, and not hidden. Plaintiff completed onboarding remotely from home on her personal device and had ample opportunity to ask questions or consult counsel.

Plaintiff acknowledges she received and understood numerous onboarding documents, including background check materials, tax forms, policies, scheduling information, meal-break information, vaccine-related materials, and other onboarding items. She also acknowledges seeing the word "arbitration" among those materials. Her ability to recall and identify such a broad range of onboarding documents supports the conclusion that she took time to review the full onboarding package. Her acknowledgement that she saw the word "arbitration" further undermines any claim that the arbitration document was hidden or omitted from the materials provided. Plaintiff argues she was not told the Agreement was optional, negotiable, or subject to attorney review. California law does not require such advisements. Employment arbitration agreements may be adhesive by nature, but adhesion alone does not make them unconscionable; the question is whether Plaintiff had a reasonable opportunity to understand the bargain. (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal. App. 4th 165; *McManus v. CJB World Markets Corp.* (2003) 109 Cal. App. 4th 76.) She did. Plaintiff had nine days, a plainly labeled agreement, an express instruction to review it carefully, and the ability to complete onboarding at home at her own pace. She had every opportunity to seek legal advice or ask questions. The fact she chose not to do so does not render the Agreement procedurally unconscionable. Nor does Plaintiff's belief onboarding was necessary to secure the job change the analysis. Pre-employment arbitration agreements are often conditions of employment; the relevant issue remains whether Plaintiff had a reasonable opportunity to review and understand the Agreement, which she did.

Substantive Unconscionability

Substantive unconscionability asks whether the terms are overly harsh or one-sided. (*Haydon v. Elegance at Dublin, supra* at 1280.) , The Agreement is mutual: (1) both Hallway Healthcare and Plaintiff must arbitrate covered disputes, and either party may compel arbitration; (2) the Agreement uses JAMS Employment Arbitration Rules, a recognized, reputable arbitration provider which provide neutral arbitrators, adequate discovery, and written awards; (3) Plaintiff pays only the initial filing fee; Defendant bears all remaining arbitrator fees and costs, preserving access to the arbitral forum; (4) the Agreement preserves Plaintiff's substantive statutory rights and remedies, including attorneys' fees where authorized by law; (5) the Agreement does not shorten any statute of limitations; (6) the Agreement carves out workers' compensation, unemployment insurance, state or federal disability insurance, Sarbanes-Oxley whistleblower claims, public injunctive relief, and claims expressly precluded by governing federal law.

Plaintiff argues the confidentiality clause is unconscionable because broad confidentiality may impair witness investigation, increase costs, and hinder statutory enforcement under *Ramos, supra* and *Hasty v. American Automobile Assn. of Northern*

Cal., Nev. & Utah (2023) 98 Cal.App.5th 1041. The clause avoids those concerns. It expressly permits protected concerted activity under the NLRA, including discussions of wages, hours, and terms of employment. The provision expressly permits either party to communicate with witnesses to the extent necessary to assist in arbitrating the proceeding.

Plaintiff argues incorporation of JAMS rules is unconscionable because the rules were not provided. But the Agreement states the rules are available at www.jamsadr.com and that Defendant will provide a copy upon request. California courts have consistently held incorporation of arbitration rules by reference to a publicly available website, with an offer to provide a copy upon request, is not unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal. 4th 1237.)

Plaintiff's challenge to the class, collective, and representative waiver is foreclosed by federal law. The United States Supreme Court held in *Epic Systems Corp. v. Lewis*, 584 U.S. 497 (2018) that the FAA requires enforcement of arbitration agreements containing class and collective action waivers, even in the employment context. The Court rejected the argument that the National Labor Relations Act (NLRA) provides employees with a substantive right to pursue claims on a class or collective basis that would override the FAA. Again, the Agreement expressly provides it is governed by the FAA and that Defendant is engaged in transactions involving interstate commerce. The FAA therefore governs, and Epic Systems requires enforcement of the class and collective action waiver. To the extent Plaintiff argues California's rule prohibiting waivers of representative PAGA claims announced in *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348 survives *Epic Systems*, the Agreement addresses that issue. The waiver expressly provides that it applies "[t]o the maximum extent permitted by law." The Agreement further provides that "[a]ny issue concerning the validity, enforceability, or scope of this class action, collective and representative action waiver must be decided by a state or federal court." If the waiver is found unenforceable as to representative PAGA claims, the Agreement provides that such claims "shall be litigated in court."

Plaintiff argues the offer-of-judgment provision is unconscionable because it permits either party to serve an offer and shifts post-offer fees and costs if the final arbitration judgment is not more favorable than the offer. However, the provision is mutual, mirrors Federal Rule of Civil Procedure 68, and applies only to the same extent as if the case were filed in court. Plaintiff cites no authority holding such a provision unconscionable in arbitration.

The motion is granted. All proceedings are taken off calendar pending completion of arbitration, and this civil case is stayed pending arbitration. A Hearing re: completion of arbitration is set for May 6, 2027, at 8:30 a.m., in Department 5.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603181	STOKICH vs HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Because it is unnecessary to take judicial notice of documents already filed in the same action, the court denies the request.

Plaintiff submits evidentiary objections to the Declaration of Ali Ameripour. The court declines to rule on these objections as moot – as explained below, HMA does not meet its burden to show the existence of an enforceable arbitration agreement.

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The Federal Arbitration Act is Applicable

HMA contends the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 1 *et. seq.* applies. The FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the arbitration provision in the Owner’s Handbook expressly states the FAA applies. (Decl. of Ali Ameripour, ¶ 4, Exhibit 2, § 4.) Plaintiff does not oppose the application of the FAA. Thus, the FAA governs in this case.

Existence of Arbitration Agreement

Under the FAA, courts apply California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute. (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59–60.) “Under both federal and California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (*Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 98; 9 U.S.C. § 2; CCP § 1281.2.) Similar to California law, any doubt about the arbitration of a dispute under the FAA is resolved in favor of arbitration. (*AT&T Technologies, Inc. v. Communications Workers of Am.* (1986) 475 U.S. 643, 650.)

HMA argues it can compel arbitration pursuant to the arbitration provision in the Owner’s Handbook. Section 4 of the Owner’s Handbook states, in relevant part:

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle’s purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

....

This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law.

...

IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPT-

**OUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR
PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION
PROVISION.**

(Declaration of Ali Ameripour, ¶ 4, Exhibit 2 at p. 12 - 14 [emphasis in original].)

Plaintiff argues the Owner's Handbook is unenforceable because HMA fails to authenticate any assent by Plaintiff within. In California, general principles of contract law determine whether the parties have entered a binding agreement to arbitrate. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) "An essential element of any contract is the consent of the parties or mutual assent." (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270; Civ. Code §§ 1550, 1565.) Consent is typically shown by one party's offer, followed by the other's acceptance and its communication to the offeror. (Rest. 2d Contracts §§ 22(1), 23-24.) HMA has failed to show mutual assent. There is no evidence Plaintiff signed the arbitration provision or the Owner's Handbook. Nor is there any evidence Plaintiff even signed an acknowledgement of receipt of the Owner's Handbook. In fact, there is no evidence the Owner's Handbook was presented to Plaintiff prior to, or after, purchase. There is no declaration by a representative of HMA or the dealership where the vehicle was purchased stating that the Owner's Handbook was, in fact, provided to Plaintiff or that the Owner's Handbook is provided to all Hyundai purchasers, or that the Owner's Handbook is even applicable to Plaintiff's vehicle.

While Plaintiff alleges in the complaint that HMA issued a "written warranty" in connection with the purchase of the subject vehicle (Complaint, ¶¶ 5 and 8), there is no evidence that this "written warranty" is the same as the Owner's Handbook presented by HMA. HMA fails to meet its burden Plaintiff agreed to the arbitration provision in the Owner's Handbook.

HMA's argument under doctrine of equitable estoppel also fails. It argues Plaintiff is equitably estopped from disclaiming the arbitration provision because a litigant may not assert claims based on a contract while simultaneously arguing that an arbitration clause in that contract is ineffective. The difference here is, as explained above, HMA failed to show the Owner's Handbook is an enforceable contract or even that the "written warranty" referenced in the Complaint is the same as the Owner's Handbook presented by HMA. Moreover, there is again no indication the Owner's Handbook warranty is the same warranty upon which Plaintiff sues for breach of express warranty. Notably, warranties, unlike contracts, do not impose binding obligations on the buyer. (*Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213, 1228–29.) "A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell." (*Keith v. Buchanan* (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (*Id.*) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Com. Code §

2313; Civ. Code §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, which are reduced to a written form pursuant to Civ. Code § 1791.2, Com. Code § 2313 and/or 15 U.S.C. § 2301(6), the written warranties do not constitute a contract between the manufacturer and the buyer.

Thus, while Plaintiff can sue for breach of warranty under the Song-Beverly Act and the express warranty, HMA cannot enforce the arbitration provision without showing Plaintiff consented to it.

HMA failed to meet its burden showing the existence of a valid and enforceable arbitration agreement under the Owner's Handbook or otherwise. **The motion is denied.**